

SENATE No. 2970

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, February 26, 2026.

The committee on Senate Ways and Means to whom was referred the House Bill authorizing the Division of Capital Asset Management and Maintenance to convey certain parcels of land in the city of Brockton (House, No. 4768); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2970.

For the committee,
Michael J. Rodrigues

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1 SECTION 1. (a) As used in this section, the following words shall have the following
2 meanings unless the context clearly requires otherwise:

3 “Affordable housing”, the development of multi-family housing 100 per cent of which
4 shall be affordable to households with incomes at or below 80 per cent of the area median
5 income, adjusted for household size.

6 “Community multi-services center”, a facility that provides the public with a variety of
7 services including, but not be limited to, the distribution of food, meals and clothing and the
8 provision of child care and vocational training.

9 (b) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws or
10 any other general or special law to the contrary, the commissioner of capital asset management
11 and maintenance, in consultation with the president of Massasoit Community College, may
12 convey a certain parcel of land in the city of Brockton as described in subsection (c) to Catholic
13 Charitable Bureau of the Archdiocese of Boston, Inc. for the purposes of affordable housing and
14 a community multi-services center. The parcel shall be conveyed by deed without warranties or
15 representations by the commonwealth.

(c) The parcel that may be conveyed by the division of capital asset management and maintenance pursuant to subsection (b) is more particularly shown as the land bounded by Beaumont avenue, Quincy street, Crescent street and Burrill avenue, also known as Christo's way, on a plan of land, on file with the division of capital asset management and maintenance, entitled "Plan of Land 782 Crescent Street Brockton, Mass." prepared for the commonwealth of Massachusetts division of capital asset management and maintenance on behalf of Massasoit Community College and dated October 4, 2013. The exact location and boundaries of the parcel shall be determined by the commissioner of capital asset management and maintenance.

(d) The deed conveying the parcel pursuant to subsection (b) shall provide that the parcel shall be used solely for the purposes of affordable housing and a community multi-service center and shall include a reversionary clause that stipulates that if the parcel ceases to be used for the purposes described in this section, title to the parcel shall, at the election of the commonwealth, revert to the commonwealth and the reversionary clause shall be enforceable notwithstanding any time limit set forth in section 7 of chapter 184A of the General Laws; provided, however, the reversionary clause shall include a reasonable notice and cure period to cure any default.

(e) The consideration for the conveyance authorized in this section shall be \$1.

(f)(1) If Catholic Charitable Bureau of the Archdiocese of Boston, Inc. does not complete a purchase of the parcel pursuant to subsection (b) on or before December 31, 2030 or such other time as mutually agreed to in writing by Catholic Charitable Bureau of the Archdiocese of Boston, Inc. and the commissioner of capital asset management and maintenance, then, notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws or any other general or special law to the contrary, the commissioner may sell or lease for a term of up to 99

years, including all renewals and extensions, or otherwise grant, convey or transfer to purchasers or lessees an interest in the property or portions thereof for such purposes and on such terms and conditions as the commissioner considers appropriate. The parcel shall be conveyed by deed without warranties or representations by the commonwealth.

(2) In making any disposition pursuant to this subsection, the commissioner of capital asset management and maintenance shall use appropriate competitive bidding processes and procedures. Not less than 30 days before the date on which bids, proposals or other offers to purchase or lease the property or any portion thereof are due, the commissioner shall place a notice in the central register published by the state secretary pursuant to section 20A of chapter 9 of the General Laws stating the availability of the property, the nature of the competitive bidding process, including the time, place and manner for the submission of bids and proposals, the opening of the bids or proposals, and such other information as the commissioner considers relevant.

(3) Before completing any disposition pursuant to this subsection, the commissioner of capital asset management and maintenance shall commission an independent appraisal prepared in accordance with the usual and customary professional appraisal practice by a qualified appraiser. The commissioner shall submit the appraisals to the inspector general for review and comment. The inspector general shall review and approve the appraisals and the review shall include an examination of the methodology utilized for the appraisals. The inspector general shall prepare a report of such review and file the report with the commissioner, who shall submit copies of the appraisals and the inspector general's report to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight not less than 15 days before the execution of the instrument effecting any disposition made pursuant to

61 this subsection. If the consideration for the parcel to be conveyed is less than the fair market
62 value, the commissioner shall place notice in the central register of the conveyance, the amount
63 of the transaction and the difference between the calculated value and the price received.

64 SECTION 2. (a) Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the
65 General Laws or any other general or special law to the contrary, the commissioner of capital
66 asset management and maintenance, in consultation with the president of Massasoit Community
67 College, may convey certain parcels of land located within the city of Brockton as described in
68 subsection (b) to the city of Brockton for redevelopment purposes. The parcels shall be conveyed
69 by deed without warranties or representations by the commonwealth.

70 (b) The parcels that may be conveyed by the division of capital asset management and
71 maintenance pursuant to this section are more particularly shown as “Area 3.818 Acres” on a
72 plan of land, on file with the division, entitled “Plan of Land in Brockton, Mass. drawn for
73 Christo’s Incorporated” and dated March 23, 1977 and revised February 1, 1996. The exact
74 location and boundaries of any parcel shall be determined by the commissioner of capital asset
75 management and maintenance.

76 (c) Consideration for the conveyance authorized in this subsection (a) shall be \$1.

77 (d) The city of Brockton may sell or lease the parcels described in subsection (b) for
78 redevelopment purposes. If the city of Brockton sells or leases any portion of the parcels, the net
79 proceeds from such sale or lease, as determined by the city of Brockton and agreed to by the
80 commissioner of capital asset management and maintenance, shall be allocated between the city
81 of Brockton and the commonwealth in equal shares; provided, however, that the commissioner
82 may agree to reduce the share of the commonwealth’s proceeds to not less than 40 per cent of the

net proceeds to provide certain incentives to the city of Brockton to sell or lease the parcels expeditiously. If the net proceeds, as so determined, are in the negative, the commonwealth shall not be required to make any payments to the city of Brockton.

SECTION 3. Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws or any general or special law to the contrary, the commissioner of capital asset management and maintenance, in consultation with the mayor of the city of Brockton and the Old Colony Planning Council, established in chapter 332 of the acts of 1967, may, for no consideration, convey to the city of Brockton any portion of parcels shown on the city of Brockton assessor's map as parcels 143-080, 143-079 and 143-081 adjacent to Quincy street in the city of Brockton that may be necessary for vehicle safety, addition of a turning lane and improving vehicle access to the entrance to Massasoit Community College. The exact location and boundaries of the parcels to be conveyed shall be determined by the commissioner of capital asset management and maintenance.

SECTION 4. The grantee or lessee of any real property disposed of pursuant to this act shall be responsible for all costs relating to the conveyance including, but not limited to, appraisals, surveys, plans, recordings and any other expenses, as shall be deemed necessary by the commissioner of capital asset management and maintenance. The grantee or lessee shall acquire the property thereon in its present condition. Upon the recording of the deed conveying the parcel to a grantee, such grantee shall be responsible for all costs, liabilities and expenses for its ownership.

SECTION 5. The commonwealth's share of the net proceeds of the sale or lease of any parcel, or any portion thereof, pursuant to this act shall be deposited into an expendable trust

105 established on behalf of Massasoit Community College pursuant to section 6 of chapter 6A of
106 the General Laws. The funds deposited into the trust may be expended for capital repairs and
107 improvements to facilities on the campus of Massasoit Community College, including, but not
108 limited to, deferred maintenance, decarbonization or other capital investments, as determined by
109 the commissioner of capital asset management and maintenance and the president of Massasoit
110 Community College and approved by the secretary of administration and finance.